

Cambridge and London and the Victoria University of Manchester, graduates of the University of Leeds, having the degree which would be a qualification if it had been granted by the University of Oxford, Cambridge or London or the Victoria University of Manchester, may become candidates for and may hold any such office and shall be entitled to all such privileges as fully as graduates of any of the last-mentioned universities.

Short title.

2. This Act may be cited as the Leeds University Act, 1904.

CHAPTER 13.

An Act to provide for the Adjustment, in accordance with changes of boundary effected under the London Government Act, 1899, of the Areas within which Local Authorities and Companies are authorised to supply Electricity. [15th August 1904.]

WHEREAS it is expedient to make the boundaries of the areas within which the council of any metropolitan borough in London is authorised to supply electricity coterminous, as far as may be, with the boundaries of the borough, and for that purpose to affect in certain cases the boundaries of the areas of supply of companies authorised to supply electricity :

And whereas it is expedient to provide for agreements being made as between companies authorised to supply electricity for the purpose of making their areas of supply coterminous, as far as may be, with the areas of the metropolitan boroughs :

And whereas the objects of this Act cannot be obtained without the authority of Parliament :

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Adjustment of
area of supply
of local autho-
rity.
62 & 63 Vict.
c. 14.

1. Where by reason of any alteration of boundary under the London Government Act, 1899, any area, being part of the area of supply of the council of a metropolitan borough, has become situate outside the borough, that area shall (except as provided by this Act), as from the date of the passing of this Act, be transferred to and become part of the area of supply of the council of the borough in which the transferred area has become situated, if that council are authorised to supply electricity within the borough, or, if that council are not so authorised, of any company so authorised, but only if the area of supply of that council or company adjoins the transferred area.

Adjustment of
area of supply
as between
companies, &c.
and local autho-
rities.

2. Where by reason of any alteration of boundary under the London Government Act, 1899, any area, being part of the area of supply of a company authorised to supply electricity, or being an area in which no authority or company are authorised to supply electricity, has become situate within a borough in which

the council of the borough are authorised to supply electricity, that area shall (except as provided by this Act), as from the date of the passing of this Act, be transferred to and become part of the area of supply of the council of the borough, but only if the area of supply of that council adjoins the transferred area.

Provided that this section shall not apply in the case of an area being part of the area of supply of a company—

- (a) where the area consists of or comprises a whole parish or the greater part of a parish; or,
- (b) where the company are authorised to supply within the borough in which the area has become situate, at any point adjoining the area.

3. The foregoing provisions of this Act as to the transfer of parts of areas of supply shall not apply in the case of any part of an area of supply in which mains (other than mains along a boundary road) or other works suitable to and used for the supply of electricity have been laid down or executed before the first day of January nineteen hundred and four.

Exception where works have been executed.

4.—(1) The Board of Trade may, if they think it expedient, confirm—

Confirmation of agreements.

- (a) any agreement for the transfer of any part of an area of supply of one company to an area of supply of another company (whether for all purposes or for the purpose of the public lighting of streets only), made with a view of making the boundaries of the areas of supply of the companies coterminous with the boundaries of metropolitan boroughs; and
- (b) any agreement between companies for the supply by one of those companies of electricity for the public lighting of the whole of any street which forms a boundary between the areas of supply of those companies, if the agreement is made with the concurrence of the authority who have the management of the street for lighting purposes; and
- (c) any agreement for the transfer of an area which would have been transferred under this Act if mains or other works suitable to and used for the supply of electricity had not been laid down or executed therein before the first day of January nineteen hundred and four; and
- (d) any other agreement for the transfer of an area for the purpose of furthering the objects of this Act;

and any council or company shall have power to make agreements for the purpose and to do all things necessary for carrying out the transfer.

(2) Any transfer under an agreement so confirmed shall have effect as if it had been made by this Act.

5. As from the date on which the transfer of any area under this Act takes effect, any council or company to whom any area is transferred shall, in relation to the transferred area, have the same powers, duties and obligations with respect to the supply of electricity as they have in relation to the rest of the area of supply,

Effect of transfer.

of which the transferred area becomes part, and the powers, duties and obligations of the council or company (if any) from whom the area is transferred in relation to the supply of electricity within the transferred area shall cease without prejudice to anything done or suffered before the date on which the transfer takes effect.

Postponement
of transfer and
other powers of
Board of Trade.

6.—(1) Where the Board of Trade, on the application made to them before the thirty-first day of December nineteen hundred and five of any person appearing to them to be interested, are of opinion that, by reason of the inability of any council or company to whom any transfer of an area is made under this Act to give a proper supply of electricity within the area, or for any other cause, the postponement of any transfer made by this Act is expedient, they may order that the transfer effected by this Act shall be postponed either as to the whole or any part of the area to be transferred until a date fixed by them for the operation thereof, and the transfer shall be postponed accordingly.

(2) Where the effect of any transfer made by this Act is to separate any works of a council or company authorised to supply electricity from their area of supply, or where the Board of Trade are satisfied that it is convenient that any mains used for the purpose of supply within the area of supply of a council or company should continue to be laid in a transferred area, the Board may, on an application for a postponement of the transfer, or an application made for the special purpose, order that the council or company shall continue to have, notwithstanding the transfer, the same power of breaking up any street, railway or tramway mentioned in the order as they had before the transfer, and the council or company shall have those powers accordingly, subject to any conditions or provisions which apply to the exercise of those powers.

Obligations as
to streets in
outside area.

7. Where the council of any metropolitan borough continue to have power to supply electricity or to break up streets in an area outside their borough, the council of the borough in which the outside area is situate shall be in the same position with respect to the council having those powers in the area as they would be in if the last-mentioned council were a company supplying electricity in the area under a Provisional Order with which the provisions contained in the schedule to the Electric Lighting (Clauses) Act, 1899, were incorporated.

62 & 63 Vict.
c. 19.

Supply of maps
of altered
areas.

8. Any council or company whose area of supply is altered by any transfer under this Act shall, within two months after the date on which the alteration takes effect, supply to the Board of Trade, to the London County Council and to the council of any metropolitan borough, within which any part of the area of supply is situated, a map of the altered area on such scale and certified in such manner as the Board direct.

Determination
of questions by
Board of Trade.

9. If any question arises under this Act as to whether any area is transferred by this Act, or as to the area of supply to which it is transferred, or to the supply of electricity in any area transferred under this Act, that question shall be referred to and determined by the Board of Trade.

10. The provisions of this Act shall apply in the case of any alteration under the London Government Act, 1899, of the boundaries of the administrative county of London in the same manner as it applies in the case of any alteration of area under the London Government Act, 1899, which takes effect solely within that county, with the substitution where necessary of the district or borough council for the council of a metropolitan borough and of the district or borough for the metropolitan borough, as the case may require.

Provision where boundaries of county are altered.

11. Nothing in this Act shall affect any order made under section one hundred and forty of the Metropolis Management Act, 1855 (which relates to the management of streets in different parishes), or the provisions of any scheme made under the London Government Act, 1899.

Saving for orders under 18 & 19 Vict. c. 120, s. 140.

12.—(1) Anything required or authorised to be done under this Act by the Board of Trade may be done by the President or a secretary or assistant secretary of the Board.

Proceedings of Board of Trade.

(2) All documents purporting to be orders under this Act made by the Board of Trade and to be sealed with the seal of the Board, or to be signed by a secretary or assistant secretary of the Board, or by any person authorised in that behalf by the President of the Board, shall be received in evidence and shall be deemed to be such orders without further proof, unless the contrary is shown.

(3) A certificate, signed by the President of the Board of Trade, that any order made or act done under this Act is the order or act of the Board shall be conclusive evidence of the fact so certified.

13. In this Act, unless the context otherwise requires,—

Interpretation.

The expression “authorised” means authorised on the first day of January nineteen hundred and four by Act of Parliament or by a Provisional Order confirmed by an Act of Parliament; and

The expression “area of supply” means the area within which any council or company are authorised to supply electricity; and

The expression “electricity” has the same meaning as in the Electric Lighting Act, 1882.

45 & 46 Vict. c. 56.

14. This Act may be cited as the London Electric Lighting Areas Act, 1904.

Short title.

CHAPTER 14.

An Act to amend the Post Office Acts with respect to cumulative commissions on Money Orders and the use of embossed and impressed stamps.

[15th August 1904.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows: